

Delaware County Council Meeting October 22nd 2024

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=S7daevQWLLg
Publication Date	2024-10-23T03:14:25Z
Target Category	delaware_county

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Delaware County Council Meeting Report

Meeting Date: October 22, 2024

Body: Delaware County Council

1. Pre-Meeting Hearings & Committee Work Sessions

(No statutory public hearing or committee work session was held immediately prior to calling the regular meeting to order. Omitted.)

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding Officer Piper called the Delaware County Council meeting of October 22, 2024, to order at **00:00:25**.
- **Attendance:**
 - **Present:** Mr. Webb, Mr. Langan, Mr. Mogel, Mr. Hughes, Mr. Wad (Wadsworth/spelled phonetically in transcript as wad), Mr. Sonce (Scance), and Mr. Piper.
 - **Absent:** None noted.
 - **Presiding Officer:** Mr. Piper.

3. Preliminary & Procedural Business

- **Ceremonial Openings:** Opening prayer/invocation omitted in transcript; the meeting commenced with the Pledge of Allegiance led by Jan at [00:00:32](#).
 - **Approval of Agenda:** Approved via roll call vote ([00:01:27](#)).
 - **Approval of Minutes:** Approval of the September 24, 2024 County Council meeting minutes approved via roll call vote ([00:01:48](#)).
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4. Substantive Business & Board Action

Financial Transfers & Appropriations

- [00:02:17](#) **County General <U+2013> Extension Office Transfer**
 - **Sponsor / Presenter:** Extension Office representative.
 - **Deliberation Summary:** Taken off the table. Involves a transfer of \$640 from office supplies to repairs and maintenance equipment machinery for a total transfer of zero. The “repairs and maintenance” line actually covers a computer lease with Purdue University, which billed part of last year’s lease and this year’s lease together.
 - **Action & Vote Disposition:** Approved by roll call vote ([00:03:01](#) / [00:04:02](#)).
- [00:04:14](#) **Sheriff<U+2019>s Department Transfer**
 - **Sponsor / Presenter:** Sheriff<U+2019>s Office representative.
 - **Deliberation Summary:** Transfer of \$5,000 from overtime to part-time (total transfer zero). Department representative expressed comfort that remaining overtime lines will suffice for the rest of the year.
 - **Action & Vote Disposition:** Approved by roll call vote ([00:04:24](#) / [00:05:02](#)).
- [00:05:21](#) **Adult User Fee Fund Transfer**
 - **Sponsor / Presenter:** Emily Anderson, Court Administrator.
 - **Deliberation Summary:** Transfer of \$2,500 from equipment and machinery to professional services (total transfer zero). Anderson explained the funds reimburse a grant due to a misallocated computer purchase and noted probation computer replacement tracking.
 - **Action & Vote Disposition:** Approved by roll call vote ([00:05:38](#) / [00:07:16](#)).
- [00:07:32](#) **Project Income Transfer**
 - **Sponsor / Presenter:** Melissa Richie, Community Corrections.
 - **Deliberation Summary:** Transfer of \$37,718.00 from vacant payroll lines (work crew supervisor, case manager) to contractual services (home detention monitoring company). Richie explained that home detention populations increased compared to last year.
 - **Action & Vote Disposition:** Approved by roll call vote ([00:07:56](#) / [00:10:17](#)).

- **00:10:36 County General <U+2013> EMS Transfer**
 - **Sponsor / Presenter:** EMS Office Manager / Mike Ashley.
 - **Deliberation Summary:** Transfer of \$65,000 total across Advanced EMT, paramedic, and overtime lines (total transfer zero). Officials discussed operational strains causing high overtime, including a snowstorm, the eclipse, and coverage for a fallen firefighter, alongside ongoing staffing shortages.
 - **Action & Vote Disposition:** Approved by roll call vote ([00:11:03](#) / [00:17:45](#)).
- **00:18:11 Sheriff<U+2019>s Department Appropriation (Vehicle)**
 - **Sponsor / Presenter:** Sheriff's Office.
 - **Deliberation Summary:** Positive appropriation of \$40,000 for a total vehicle line of \$440,000 to purchase a pre-owned van previously used by Community Corrections.
 - **Action & Vote Disposition:** Approved by roll call vote ([00:18:18](#) / [00:19:32](#)).
- **00:19:41 LIT <U+2013> Sheriff<U+2019>s Pension Appropriation**
 - **Sponsor / Presenter:** County Council / Financial team.
 - **Deliberation Summary:** Positive appropriation of \$250,000 for Sheriff<U+2019>s pension. Due to an accounting/timing slip in late 2023, the fourth-quarter payment was paid in early 2024 without proper encumbrance, leaving the fund a quarter behind on appropriations. This corrects the ledger.
 - **Action & Vote Disposition:** Approved by roll call vote ([00:19:51](#) / [00:22:13](#)).
- **00:22:13 Jury Fee Fund Appropriation**
 - **Sponsor / Presenter:** Emily Anderson, Court Administrator.
 - **Deliberation Summary:** Positive appropriation of \$20,000 for other services and charges to help cover extensive jury trials running concurrently (including a 3-week trial and a 2.5-week trial), psychological evaluations, and certified interpreters.
 - **Action & Vote Disposition:** Approved by roll call vote ([00:22:20](#) / [00:24:32](#)).
- **00:24:50 Omnibus Financial Transfers & Salary Ordinance Amendment**
 - **Action & Vote Disposition:** Approved by roll call vote [00:24:56](#).
- **00:25:07 Back-Filling Report Receipt**
 - **Action & Vote Disposition:** Motion to accept and receive the back-filling report approved by roll call vote [00:25:13](#).

Ordinances & Resolutions

- **00:25:30 Ordinance 2024-D019: Solar Abatement Moratorium (Second Reading)**
 - **Sponsor / Presenter:** County Council.
 - **Deliberation Summary:** Second reading of the solar abatement moratorium ordinance. Council members noted widespread community support and a lack of opposition.
 - **Action & Vote Disposition:** Adopted via roll call vote ([00:26:24](#)).
- **00:26:54 Ordinance 2024-D016: Job Classification and Compensation Plan**
 - **Sponsor / Presenter:** County Council / Bill Hughes / Matt.

- **Deliberation Summary:** Discussion centered around ongoing maintenance plan wording, potential obligations to outside HR consultants, equity terminology, and the creation of an in-house oversight committee. Concerns over binding consulting contracts and employee equity comparisons prompted a motion to table.
 - **Action & Vote Disposition:** Motion to table approved via roll call vote (00:39:22).
- **00:39:42 Resolution 2024-17: Departmental Give-Backs**
 - **Sponsor / Presenter:** County Council / Department Heads.
 - **Deliberation Summary:** Resolution formalizing voluntary fund returns offered by various county departments during the 2025 budget formulation process.
 - **Action & Vote Disposition:** Approved by roll call vote (00:40:18 / 00:41:16).
- **00:41:29 Ordinance 2024-25: Deadline for Encumbering Funds (First Reading)**
 - **Sponsor / Presenter:** Ed / County Council.
 - **Deliberation Summary:** Establishes a strict deadline for departments to submit encumbrance requests to the Council (no later than the Monday prior to the December finance committee meeting). Department heads raised concerns regarding state law allowing encumbrances through December 31 and late-arriving December invoices/credit card statements.
 - **Action & Vote Disposition:** First reading approved by roll call vote (00:54:39); marked for revision and re-examination before subsequent readings.
- **00:55:27 Ordinance 2024-26: Public Safety Experience Pay (First Reading)**
 - **Sponsor / Presenter:** County Council / Public Safety Departments.
 - **Deliberation Summary:** Creates a formal experience/longevity matrix to comply with State Board of Accounts (SBOA) requirements separating base salaries from grandfathered/experience pay structures. Extensive debate over tiered years-of-service scales, whether years 1-4 should be zero, and inserting language requiring annual budget review/approval by future councils.
 - **Action & Vote Disposition:** First reading approved by roll call vote (00:12:02).
- **00:12:14 Ordinance 2024-27: Deputy Prosecutor & Master Commissioner Experience Pay (First Reading)**
 - **Sponsor / Presenter:** County Council / Legal Department.
 - **Deliberation Summary:** Establishes an experience pay framework for deputy prosecutors and proposes incorporating the Master Commissioner into the pay matrix. Council requested specialty point system scoring sheets before the second reading.
 - **Action & Vote Disposition:** First reading approved by roll call vote (00:11:55 / 00:19:55).

5. Open Public Comment / Citizen Forum

- **00:13:43 Mike Johnson** (Resident, 200 West north of SR 28)

- Addressed the council to express strict opposition to large-scale industrial solar projects and thanked the council for addressing solar abatements. Contrasted industrial solar land use with local agricultural beauty and community amenities like the Cardinal Greenway.
 - **00:36:31 Stephen Brand** (Resident, Monon Township / 200 West)
 - Addressed the job classification committee structure. Recommended including a County Commissioner (non-appointed) and an appointed public member with professional human resources or compensation survey expertise on the oversight committee.
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6. Administrative Updates & Adjournment

- **Staff & Board Announcements:**
 - Board appointments for 2025 were announced for advertising, covering the Alcohol and Beverage Board, County Council Attorney, Daleville Economic Board, Housing Authority Board, Property Tax Assessment Board, Redevelopment Commission, Tax Abatement Committee, Yorktown Redevelopment, and EMA Advisory Board. Applications/interest must be distributed by December 1.
 - Early voting updates were provided by Sheriff/Clerk representatives regarding satellite voting hours.
 - Public Defender Shelly Harvey (**00:30:38**) announced she will request an additional appropriation next month for attorney fees and trial/appeal costs.
 - **Adjournment:** Official meeting adjourned following a motion regarding jury logistics, with the next regular meeting scheduled for **Tuesday, November 26, 2024, at 9:00 a.m.** (**01:52:07**).
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